

24NWCV03832 24NWCV03832

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Case Number: 24NWCV03832 Hearing Date: July 16, 2026 Dept: L

Defendant Estate of Roman

Rodriguez's Motion to Continue Trial is DENIED.

Defendant to give notice.

Background

This is a motor vehicle

negligence action regarding an accident that occurred on December 26, 2022. On

October 21, 2024, Plaintiff Maria Prieto, individually and as

successor-in-interest to William Joseph Prieto, ("Plaintiff") filed this action

against Defendant Estate

of Roman Rodriguez, by and through the administrator and personal

representative of the Estate of Roman Rodriguez, and Does 1 to 100.

On December 12, 2024, Plaintiff

filed the First Amended Complaint (FAC), adding Defendant Josefina Romo De

Sharp as a defendant. The FAC alleges two causes of action for 1) Wrongful

Death and 2) Survival Claims.

At the June 11, 2025 Case

Management Conference, jury trial was set for June 1, 2026. (6/11/26 Minute

Order.)

On March 4, 2026, Defendant

Estate of Roman Rodriguez (hereinafter, "Defendant") filed a Substitution of

Attorney, substituting in current counsel.

On April 17, 2026, the Court denied, in part, and granted, in part, Defendant's Ex Parte Application to Stay all Proceedings in this Action of in the Alternative to Continue the Trial Final Status Conference and Related Discovery/Motion Dates and Deadlines. Jury trial was continued to the current date of August 17, 2026. (4/17/26 Minute Order.)

Defendant now moves to continue trial and all related dates for at least 6 months.

Legal Standard

"Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." (Cal. Rules of Court, Rule 3.1332(c). The Court, in making its determination to continue the trial should consider the following factors: "(1) The proximity of the trial date; (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party (3) The length of the continuance requested; (4) The unavailability of alternative means to address the problem that gave rise to the motion or application for a continuance; (5) The prejudice that parties or witnesses will suffer as a result of the continuance; (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; (7) The court's calendar and the impact of granting a continuance on other pending trials; (8) Whether trial counsel is engaged in another trial; (9) Whether all parties have stipulated to a continuance; (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and (11) Any other fact or circumstance relevant to the fair determination of the motion or application." (Cal. Rules of Court, Rule 3.1332(d).)

Discussion

Defendant asserts that good cause exists to continue trial because Defendant's insurance carrier, Liberty Mutual Fire Insurance Company, ("LMFIC") filed a Complaint against Plaintiff on April 8, 2026, entitled Liberty Mutual Fire Insurance Company v. Maria Prieto, et al., LASC Case No. 26STCV11213 (hereinafter, "Liberty Action"). (Marchesini

Decl., ¶ 4, Exh. A.) On May 19, 2026, Defendant filed a Notice of Related Case in this matter. (Marchesini Decl., ¶ 7, Exh. B.) On June 11, 2026, LMFIC filed a Notice of Related Case in the Liberty Action.

In the Liberty Action, LMFIC alleges that a settlement agreement was reached to settle all of Plaintiff's claims in the instant action, and Plaintiff refuses to abide by the settlement agreement. (Ibid.) Defendant argues that, in the event that LMFIC prevails in that action and all claims are settled, trial in this action will be rendered moot. (Marchesini Decl., ¶ 5.) Defendant is informed that LMFIC intends to file a dispositive motion. (Marchesini Decl., ¶ 9.) Thus, Defendant argues that trial should be continued in this matter to allow the Liberty Action to be resolved. Defendant will be prejudiced if it is forced to proceed with trial in this matter before the Liberty Action can be adjudicated.

Defendant also notes that Plaintiff has not yet appeared in the Liberty Action. (Marchesini Decl., ¶ 9.) However, Defendant is informed that Plaintiff will be represented in the Liberty Action by the same attorneys who are representing her in the instant action. (Ibid.)

In opposition, Plaintiff argues that no good cause exists to continue trial based on the Liberty Action. Firstly, Defendant should have been aware of LMFIC's claims regarding settlement since the settlement was allegedly reached in May 2023. On August 1, 2025, Plaintiff sent a written correspondence to Defendant stating that Plaintiff disputed the existence of any settlement, and that if Defendant intended to rely on a prior settlement as a defense, it was required to plead that defense in its Answer. (Hovhannisyan Decl., ¶¶ 5-6, Exh. B.) Defendant's Answer contains no defense based on prior settlement agreement. (Hovhannisyan Decl., ¶ 3.) Further, Defendant asks this Court to continue trial based only on a "bare possibility that Liberty Mutual might one day file a dispositive motion and might one day prevail on it." (Opp., 4:8-9.)

Further, Plaintiff argues that Defendant's motion rests on identical arguments offered in support of its April 17, 2026 Ex Parte Application. In ruling on that Ex Parte Application, the Court denied Defendant's request for a stay and alternative request for a six-month trial continuance. Rather, the Court continued trial for eleven weeks to allow new counsel to get up to speed on the case and to conduct discovery.

Since then, Plaintiff Maria Prieto and Officer Roger Cancio (the responding officer) have been deposed. (Hovhannisyan Decl., ¶ 8.) Expert designations have been exchanged. (Hovhannisyan Decl., ¶ 9.) The only witnesses involved in the collision are deceased. (Hovhannisyan Decl., ¶ 10.) Plaintiff therefore argues that this case is trial-ready.

In reply, Defendant reiterates that trial should be continued so that the Liberty Action may be resolved first. Further, this action is not “trial-ready” as Plaintiff suggests, especially in light of the fact that Plaintiff has recently filed two discovery motions that are set for hearing after trial.

The Court acknowledges that, on May 21, 2026, Plaintiff filed an objection to Defendant’s Notice of Related Case. The Court denied the Notice of Related Case on June 18, 2026.

The Court agrees with Plaintiff that no good cause exists to continue trial based on the Liberty Action at this time. The Court has previously denied Defendant’s request to continue trial based on the same grounds as this Motion in its April 17, 2026 Ex Parte Application. (4/17/26 Minute Order.) As admitted by Defendant, trial was only briefly continued to allow recently-substituted in counsel to catch up in the case and to conduct discovery. (See Marchesini Decl., ¶ 6.) Defendant’s Motion is merely based on speculation regarding the outcome of the Liberty Action. As noted by Defendant, LMFIC has not yet filed a dispositive motion. Overall, the Court is not persuaded that trial should be continued at this point.

Accordingly, Defendant’s Motion to Continue Trial is denied without prejudice.